conservatism[9] and an even further cry from the views of his ideological successors. Boundaries between liberal and authoritarian visions of India, between Nehru and Mookerjee, between a repressive colonial past and a democratic post-colonial future are not only more blurred than commonly imagined – they often do not exist at all.

Current strands of historiography often take diametrically opposite views about the Indian Constitution. Some see it as a constitutional revolution that transformed the relationship between the rulers and the ruled with an expansive chapter on Fundamental Rights.[10] Others see violence and authoritarianism – with an overbearing, centralized executive enabled by the Constitution – as foundational to the postcolonial Indian state.[11] Both dominant interpretations are upended by the First Amendment – and the contours of the debate it engendered in Parliament. If the republic's founding moment was transformative, then this transformation was partially cut short and amputated by the First Amendment.[12] If authoritarianism is indeed foundational to the postcolonial Indian state, then such a state of affairs owes much to the First Amendment.

Turning common perceptions on their head, as the Nehru-Mookerjee debate does, the broader story of the First Amendment both challenges popular beliefs about the halcyon days of Indian democracy in its first flush and asks uncomfortable questions about its present predicaments. It is often asserted, for example, that India's draconian public safety laws, such as the law of sedition, are a legacy of its colonial past that is now being misused as a means of silencing dissent.[13] Yet, contrary to popular perception, not only are such laws constitutionally rooted in the First Amendment that (among other freedoms) curbed free speech – they were also championed by Nehru as a core component of his version of modernity. Far from being a remnant of colonialism, they are an outcome of the Nehruvian state's determination to suppress political alternatives; a vital part of India's Nehruvian legacy.

The story of the amendment, India's first great clash of ideas, reveals the Nehruvian vision of India to have eerie convergences with the modern-day